SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 822 of 2020 (YEAR: 2020)

CORAM: ARUN MISHRA, INDIRA BANERJEE, M.R. SHAH

Hira Singh
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985
Sections:	Section 2(viia) NDPS, Section 21 NDPS

JUDICIAL HEADNOTE & SUMMARY

Held that in mixture of narcotic drug and neutral substance, total weight of mixture is to be considered, not just pure drug content, to determine commercial quantity.

RATIO DECIDENDI

The Court held that: Held that in mixture of narcotic drug and neutral substance, total weight of mixture is to be considered, not just pure drug content, to determine commercial quantity. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Hira Singh v. Union of India (Criminal Appeal No. 822 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, particularly Section 2(viia) NDPS, Section 21 NDPS. Held that in mixture of narcotic drug and neutral substance, total weight of mixture is to be considered, not just pure drug content, to determine commercial quantity.

OPERATIVE ORDER

ORDER: Decided